

AMENDMENT TO PLAN PROVIDER AGREEMENT

The Agreement entered into by and between Premera Blue Cross, LifeWise Health Plan of Washington, LifeWise Assurance Co. and Premera Blue Cross HMO (“Plan”) and Provider is hereby amended effective January 15, 2025. This Amendment is in addition to the Agreement and does not replace or supersede the Agreement. The Agreement, except as specifically modified herein, shall remain in effect.

The provisions set forth in this Amendment are being added to the Agreement to comply with legislative and regulatory requirements of the State of Washington regarding provider contracts with providers rendering health care services in the State of Washington. To the extent that such Washington laws and regulations are applicable and/or not otherwise preempted by federal law, the provisions set forth in this Amendment shall apply and, to the extent of a conflict with a provision in the Agreement, shall control. The provisions set forth in this Amendment do not apply with regard to Covered Services rendered to Participants covered under self-funded plans, unless otherwise indicated below.

The Agreement is amended as follows:

1. **PART 1, Section 1.16, (“Established Relationship”)**: a new Section 1.16 is added to the Agreement as follows:

“Established Relationship. “Established Relationship” means the provider providing audio-only telemedicine has access to sufficient health records to ensure safe, effective, and appropriate care services and: (i) The covered person has had, within the past three years, at least one in-person appointment, or at least one real-time interactive appointment using both audio and video technology, with the provider providing audio-only telemedicine or with a provider employed at the same medical group, at the same clinic, or by the same integrated delivery system operated by a carrier licensed under chapter 48.44 or 48.46 RCW as the provider providing audio-only telemedicine; or (ii) The covered person was referred to the provider providing audio-only telemedicine by another provider who has had, within the past three years, at least one in-person appointment, or at least one real-time interactive appointment using both audio and video technology, with the covered person and has provided relevant medical information to the provider providing audio-only telemedicine.”

2. **PART 3, Section 3.16, (“Audio-Only Telemedicine Consent”)**: this section is deleted in its entirety and replaced with the following:

“Provider agrees audio-only telemedicine billing requires advance consent from the Enrollee. Provider must have an Established Relationship with the Enrollee to bill for audio-only telemedicine. Failure to obtain Enrollee consent could result in disciplinary action against Provider.”

3. **PART 4, Section 4.03, (“Refunds”)**: this section is deleted in its entirety and replaced with the following:

“Plan Refunds. Except in the case of fraud, or as provided below, Provider may not: (a) request additional payment from Plan to satisfy a claim unless Provider does so in writing to Plan within twenty-four (24) months after the date that the claim was denied or payment intended to satisfy the claim was made; or (b) request that the additional payment be made any sooner than six (6) months after receipt of the request. Any such request must specify why the Provider believes Plan owes the additional payment.

Provider may not, if doing so for reasons related to coordination of benefits with another carrier or entity responsible for payment of a claim: (a) request additional payment from Plan to satisfy a claim unless Provider does so in writing to the carrier within thirty (30) months after the date the claim was denied or

payment intended to satisfy the claim was made; or (b) request that the additional payment be made any sooner than six (6) months after receipt of the request. Any such request must specify why Provider believes the Plan owes the additional payment and include the name and mailing address of any entity that has disclaimed responsibility for payment of the claim.”

Provider Refunds. Except in the case of fraud, or as provided herein, Plan may not: (a) request refund payment from Provider of a payment previously made to satisfy a claim unless Plan does so in writing to Provider within twenty-four (24) months after the date that the claim was denied or payment intended to satisfy the claim was made; or (b) request that a contested refund be made any sooner than six (6) months after receipt of the request. Any such request must specify why the Plan believes Provider owes the refund payment.

Plan may not, if doing so for reasons related to coordination of benefits with another carrier or entity responsible for payment of a claim: (a) request refund payment from Provider to satisfy a claim unless Plan does so in writing to the Provider within thirty (30) months after the date the claim was denied or payment intended to satisfy the claim was made; or (b) request that a contested refund be paid any sooner than six (6) months after receipt of the request. Any such request must specify why Plan believes the Provider owes the refund payment and include the name and mailing address of any entity that has primary responsibility for payment of the claim. If Provider fails to contest the request in writing to the Plan within thirty (30) days of its receipt, the request is deemed accepted, and the refund must be paid.”

The following provision in this Amendment will apply to Participants covered under both fully insured and self-funded plans.

4. **PART 9, Section 9.07, (“Confidentiality”)**: this section is deleted in its entirety and replaced with the following:

“Provider and Plan acknowledge they are both subject to state and federal privacy laws and agree to comply with all applicable laws.”

The effective date of this amendment is January 15, 2025. All other terms and conditions of the Agreement remain unchanged, except as specified in this or any other amendment to the Agreement.

**PREMERA BLUE CROSS, LIFEWISE HEALTH
PLAN OF WASHINGTON, LIFEWISE ASSURANCE
CO. AND PREMERA BLUE CROSS HMO
BY:**



Signature

Jennifer Sanders

Print or Typed Name

VP, Provider Network
Management and Solutions

Title